

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM06
HON. JUDGE Megan L. Wagner

Date: 07/29/26

Court Room Rules and Notices

#	Case Name	Tentative
1	Nunes – Trust (2024- 01396741)	Motions to Compel (2) Respondent Mervyn Nunes’s Motion to [Compel] Further Responses by Petitioner Peggy Nunes (ROA 100) is DENIED. The accompanying request for sanctions is DENIED. Petitioner Peggy Nunes’ Motion to [Compel] Further Responses to Special Interrogatories, Requests for Production of Documents, and Request for Admission Responses, and for Monetary Sanctions (ROA 109) is DENIED. The court is inclined to grant Respondent’s request for sanctions in the amount of \$1,575. The parties should be prepared to discuss this award. Petitioner’s request for sanctions is DENIED. I. RESPONDENT’S MOTION TO COMPEL (ROA 100) By his motion, Respondent seeks to compel Petitioner to further respond to special interrogatories, requests for admission, and requests for production of documents. The discovery was served on May 9, 2025. Responses were provided on March 9, 2026. Respondent filed his motion to compel on April 22, 2026. Petitioner served amended responses that same day (ROA 148 at 5:6-7) rendering the motion moot. The motion could and should have been withdrawn. Respondent’s motion to compel is DENIED. II. PETITIONER’S MOTION TO COMPEL (ROA 109) By her motion to compel, Petitioner seeks to compel Respondents Mervyn Nunes and Theresa Nunes to further respond to certain written discovery. The discovery was served on March 17, 2026, and included more than two hundred separate requests. On April 15, 2026, Respondents requested an additional two weeks in which to respond. The request was denied and on April 17, 2026, Respondents served objections without any substantive responses. On April 30, 2026, Petitioner filed her motion to compel. On an unspecified date, but after the motion was filed and before the opposition was submitted, Respondents provided supplemental responses rendering the motion moot. The motion could and should have been withdrawn.

		Further, as of January 1, 2026, meet and confer efforts in connection with discovery motions must be conducted in person, telephonically, or by videoconference. (Code of Civ. Proc., § 2016.040(a).) Petitioner does not claim or show any effort to meet as required by section 2016.040(a). For the foregoing reasons, Petitioner’s motion to compel is DENIED. The court notes that it did not consider the untimely Amended Supplemental Declaration, Amended Supplemental Memorandum of Points and Authorities, and Summary of Newly Discovered Discovery Deficiencies in Further Support of Petitioner’s Amended Motion to Compel Further Responses and Request for Monetary Sanctions filed by Petitioner on July 14, 2026—15 calendar days before the hearing on the motion. Respondents are directed to give notice.
1	Ahmed – Probate (2023-01338597)	Motion to Compel Respondent Faye Ammar’s Motion to Compel Further Responses to Deposition Notice Requests for Production of Documents, Set One to Petitioner, Carol Ann Ahmed Pursuant to Cal. Code Civ. Proc. 1s 2025,480 (ROA 308) is CONTINUED TO August 26, 2026 as set forth below. “Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing. The moving and supporting papers served shall be a copy of the papers filed or to be filed with the court. However, if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California.” (Code. Civ. Proc. § 1005, subd. (b).) For notice served by electronic mail, two days are added. (Code. Civ. Proc. § 1010.6, subd. (a)(3)(B).) Respondent’s motion was filed April 28, 2026 (ROA 308) and mail-served on Petitioner the following day (ROA 312). However, the copy of the motion that was mail-served on Petitioner showed a hearing date of June 10, 2026 (<i>Id</i>). The motion was actually set for hearing on July 29, 2026. The last date for email notice of the July 29, 2026 hearing date was July 3, 2026. Respondent gave Petitioner email notice on July 9, 2026—six days late. Further, the court notes that under a recent amendment to the discovery statutes, parties are required to meet and confer in person, telephonically, or by video conference. (Code. Civ. Proc. §§ 2016.040, subd. (a) and 2025.480, subd. (a).) Electronic

		correspondence such as that offered in connection with the motion does not fulfill the new requirements. The parties are ordered to meet and confer in person, telephonically, or by video conference no later than August 5, 2026. In order to provide statutory notice and allow the parties to properly meet and confer, this motion is CONTINUED to September 1, 2026, in Department CM06 at 3:00 p.m. A second opposition to the motion will be allowed provided it is filed nine court days before September 1, 2026. (Code. Civ. Proc. § 1005, subd. (b).) A second reply to the motion will be allowed provided it is filed at least five court days before September 1, 2026. (Code. Civ. Proc. § 1005, subd. (b).) Respondent is directed to give notice.